

2. **What considered a reasonable time.** — A sale cannot, in general, be set aside after a lapse of twenty years (*d*); but in these cases the Court does not confine itself to that period by analogy to the Statute of Limitations, for relief *has been refused after an acquiescence of [*496] eighteen years (*a*); and seventeen years (*b*); and it is presumed that even a shorter period would be a bar to the remedy, where the *cestui que trust* could offer no excuse for his *laches* (*c*). However, the sale has been opened after an interval of ten years (*d*), and eleven years (*e*); and even after a much greater lapse of time where the executor had purchased in the names of trustees for himself, and the transaction was attended with circumstances of disguise and concealment (*f*).

3. **Of persons under disability.** — Persons not *sui juris*, as *femes covert* and infants, cannot be precluded from relief on the ground of acquiescence during the continuance of the disability (*g*). But *femes covert* as to property settled to their *separate use*, [or belonging to them as their separate property under the Married Women's Property Act, 1882 (*h*),] if their power of anticipation be not restricted, are regarded as *femes sole* (*i*).

4. **Time allowed to a class of persons.** — A *class* of persons, as *creditors*, cannot be expected in the prosecution of their common interest to exert the same vigour and activity as *individuals* would do in the pursuit of their exclusive rights (*j*).

(*d*) *Price v. Byrn*, cited *Campbell v. Walker*, 5 Ves. 681; *Barwell v. Barwell*, 34 Beav. 371.

(*a*) *Gregory v. Gregory*, G. Coop. 201, affirmed on appeal, see Jac. 631; *Champion v. Rigby*, 1 R. & M. 539; *Roberts v. Tunstall*, 4 Hare, 257; *King v. Anderson*, 8 I. R. Eq. 625.

(*b*) *Baker v. Read*, 18 Beav. 398.

(*c*) See *Oliver v. Court*, 8 Price, 167, 168.

(*d*) *Hall v. Noyes*, cited *Whichcote v. Lawrence*, 3 Ves. 748; [and see *Re Worssam*, 46 L. T. N. S. 584.]

(*e*) *Murphy v. O'Shea*, 2 Jon. & Lat. 422.

(*f*) *Watson v. Toone*, 6 Mad. 153.

(*g*) *Campbell v. Walker*, 5 Ves. 678; S. C. 13 Ves. 601; *Roche v. O'Brien*, 1 B. & B. 330, see 339.

[(*h*) 45 & 46 Vict. c. 75.]

(*i*) See *infra*.

(*j*) *Whichcote v. Lawrence*, 3 Ves. 740, see 752; *Ex parte Smith*, 1 D. & C. 267; *Hardwick v. Mynd*, 1 Anst. 109; [*Boswell v. Coaks*, 27 Ch. D. 424;] and see *Kidney v. Coussmaker*, 12 Ves. 158; *York Buildings' Company v. Mackenzie*, 8 B. P. C. 42; *Ex parte Smith*, 1 D. & C. 267.